

STATE OF NEW YORK

592--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. HINCHEY, ASHBY, BORRELLO, CLEARE, FAHY, HELMING, MAY, OBERACKER, ROLISON, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Agriculture -- recommitted to the Committee on Agriculture in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the agriculture and markets law, in relation to establishing the New York state youth in agriculture and entrepreneurship summer employment program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The agriculture and markets law is amended by adding a new
2 article 29-A to read as follows:

ARTICLE 29-A

NEW YORK STATE YOUTH IN AGRICULTURE AND ENTREPRENEURSHIP SUMMER EMPLOYMENT PROGRAM

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5 Section 525. Legislative intent and findings.

6
7 526. Definitions.

8 527. New York state youth in agriculture and entrepreneurship
9 summer employment program.

10 528. Commissioner's power and duties.

11 § 525. Legislative intent and findings. The legislature hereby finds
12 that diversifying the agricultural industry addresses issues of food
13 insecurity and food access in the state. The legislature further finds
14 that there are certain culturally significant foods in the state and
15 seeks to encourage the continuance of production of such foods and to
16 generate an interest in the production of such foods by future gener-
17 ations of persons working in agriculture. The legislature hereby estab-
18 lishes the New York state youth in agriculture and entrepreneurship

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 summer employment program to allow students the opportunity to be
2 educated on the agricultural industry and alternative career paths and
3 to attain entrepreneurial experience. It is the intention of the legis-
4 lation that the New York state youth in agriculture and entrepreneurship
5 summer employment program serves as a stepping stone for such youth in
6 careers in agriculture and entrepreneurship, as well as to provide farm-
7 ers means to participate in the program.

8 § 526. Definitions. As used in this section:

9 1. "Minority or socially disadvantaged" means a group whose members
10 have been subjected to racial, ethnic, or gender prejudice because of
11 their identity as members of a group without regard to their individual
12 qualities or citizenship status. These groups include, but are not
13 limited to, the following:

14 (a) African Americans;

15 (b) Native Indians;

16 (c) Alaskan Natives;

17 (d) Hispanics;

18 (e) Asian Americans; and

19 (f) Native Hawaiians and Pacific Islanders.

20 2. "Low income or economically disadvantaged" means having a family
21 income that does not exceed one hundred fifty percent of the federal
22 poverty level, or being a child of a working migratory family or an
23 agricultural worker who is employed by more than one agricultural
24 employer during the course of a year and whose income varies according
25 to weather conditions and market stability.

26 3. "Qualifying business" means a farmers market, mobile market, commu-
27 nity supported agriculture, cooperative, or any other type of business
28 structure that provides New York grown and raised foods directly to
29 consumers as approved by the commissioner.

30 4. "Qualifying farm" means a small to medium-sized farm or urban farm
31 participating in a qualifying business.

32 § 527. New York state youth in agriculture and entrepreneurship summer
33 employment program. 1. There is hereby established in the department the
34 New York state youth in agriculture and entrepreneurship summer employ-
35 ment program to provide students with the opportunity to be educated on
36 the agricultural industry and alternative career paths and to provide
37 agricultural work experience and entrepreneurship work experience.

38 2. The commissioner shall establish application criteria that require
39 qualifying businesses and qualifying farms that choose to participate in
40 the program to:

41 (a) demonstrate that the qualifying business or farm can provide
42 students with both agricultural work experience and entrepreneurship
43 work experience;

44 (b) require the qualifying business or farm to pay wages to eligible
45 students in an amount that is at least minimum wage. If a qualifying
46 business or farm is unable to demonstrate the ability to pay students at
47 least minimum wage, the commissioner may award the qualifying business
48 or farm a grant for the express purpose of assisting the qualifying farm
49 or business in paying wages to eligible students. Businesses or farms
50 receiving such grants shall be required to demonstrate proof of finan-
51 cial hardship in a form created and prescribed by the commissioner;

52 (c) provide transportation to and from the qualifying business or
53 qualifying farm or to provide transportation compensation to the eligi-
54 ble student; and

55 (d) provide eligible students with a minimum of sixteen hours and a
56 maximum of no more than forty hours of work per week.

1 § 528. Commissioner's powers and duties. The commissioner shall have
2 the following powers and duties with regards to the New York state youth
3 in agriculture and entrepreneurship summer employment program:

4 1. subject to an appropriation therefor, to promulgate grants as
5 necessary to achieve the legislative intent of this program as set forth
6 in this article.

7 2. to apply for any applicable federal grants to help fund the
8 program.

9 3. in consultation and cooperation with the commissioner of social
10 services, the commissioner of education, and the president of the higher
11 education services corporation, to perform outreach to ensure the
12 program is known and available to students who are socially disadvan-
13 tagged or economically disadvantaged.

14 4. to establish a website for the program which includes a portal
15 where students may apply for jobs and where qualifying businesses and
16 qualifying farms may connect and which provides promotional materials
17 about the program in a pdf format that is easily accessible and print-
18 able by organizations and the general public.

19 5. to include annual outreach campaigns that start at least three
20 months prior to the date when applications for the summer program are
21 first able to be submitted. Such campaigns shall include outreach to
22 schools, non-profit organizations, qualifying businesses and qualifying
23 farms. Such outreach shall be performed in a variety of methods, includ-
24 ing a social media campaign.

25 6. to create an informational packet for students on agricultural
26 opportunities in higher education including, but not limited to, infor-
27 mation on the availability of applicable: scholarships; student loan
28 forgiveness; and available state and federal government assistance
29 programs to create and establish farms.

30 § 2. This act shall take effect on the one hundred eightieth day after
31 it shall have become a law. Effective immediately, the addition, amend-
32 ment and/or repeal of any rule or regulation necessary for the implemen-
33 tation of this act on its effective date are authorized to be made and
34 completed on or before such effective date.